

Kuldip Singh vs M/S Park View Apartments Pvt. Ltd. & Anr. on 6 November, 2017

Daily Order

IN THE DELHI STATE CONSUMER DISPUTES REDRESSAL, COMMISSION : DELHI

(Constituted under Section 9 of the Consumer Protection Act, 1986)

Date of Arguments :06.11.2017

Date of Decision :07.11.2017

Complaint No.1673/2017

IN THE MATTER OF:

Shri Kuldip Singh,

S/o. Late Shri Sardar Kartar Singh,

R/o. Flat No.501,

Park View City,

Sohna Road, Gurgaon,

Haryana.

Versus

1. M/s. Park View Apartments Pvt. Ltd,

Having its Registered Office at

F-277 Okhla Industrial Area Phase-I,

New Delhi.

2. M/s. Park View Apartments Pvt. Ltd,

Bestech House, 124 Sector-44,

Gurgaon-122002 (Haryana),

Through its Senior Manager.

HON'BLE SH. O.P.GUPTA, MEMBER(JUDICIAL)

HON'BLE SH. ANIL SRIVASTAVA, MEMBER

1. Whether reporters of local newspaper be allowed to see the judgment?
2. To be referred to the reporter or not?

Present: Shri Debajyoti, counsel for the complainant.

PER : SHRI ANIL SRIVASTAVA, MEMBER

JUDGEMENT

This complaint has been filed by Mr. Kuldip Singh resident of Gurgaon, Haryana, for short complainant, under Section 17 of the Consumer Protection Act, 1986 against M/s. Park View Apartments Pvt. Ltd., hereinafter referred, to as OPs, alleging deficiency in service in not handing over the possession of the flat within the time as agreed to, and praying for the relief as under:-

- (a) Direct the respondents to refund an amount of Rs.5,28,548/- (Rs.1,13,648/- towards maintenance amount deducted by the respondent + Rs.4,14,900/- towards delay possession of the booked flat for 36 months @Rs.11,525/- per month) along with interest @18% per annum as per the Legal notice dated 09.05.2014 towards

damages caused to the complainant due to the unfair trade practices of the respondents; and

(b) Direct the respondents to compensate the complainant to the tune of Rs.2,00,000/- towards mental harassment, agony and pain suffered by the complainant due to the unlawful act of the respondents; and (c) Award litigation charges of Rs.50,000/- to the complainant; and

(d) Pass such other further orders as this Hon'ble Forum may deem fit and proper in the facts and circumstances of the present case.

Facts of the case, necessary for the disposal of the complaint, are these.

The complainant had booked a flat in Park View City Project at Sohna Road, Gurgaon, for a total sale consideration of Rs.43,97,060/- and for this purpose he has entered into Builder Buyer's Agreement with the OP on 24.11.2005 after depositing a sum of Rs.7,11,066/- as booking amount. After receipt of the aforesaid booking amount of Rs.7,11,066/- the respondent no.1 allotted apartment no.I-501 on 5th Floor having super area of 2305 sq ft. (approx.) to the complainant. It was specifically mentioned in the agreement that the OP shall hand over the possession of the constructed flat within 30 months from the date of signing of the agreement subject to receipt of the payment.

By 18.02.2008 the complainant had made full and final payment to the OP, the last installment of Rs.4.50 lakhs having been paid on that day. The possession of the flat was to be handed over on the expiry of 30 months from the date of execution of the agreement which means by November, 2008. However, the possession was actually handed over on 01.10.11.

The complainant alleging delay in handing over the possession of the flat, has sought for the compensation for the delayed period. His request for not acceded to. Legal notice was also sent in this behalf but even that evoked no response. This led to the filing of the complaint in this Commission.

The matter was listed before us for admission hearing on 06.11.2017 when the ld. Counsel for the complainant appeared and advanced the arguments. We have perused the records of the case.

In the first instance we note that the cause of action in the matter arose on 01.10.2011, when he was handed over the possession of the flat but the complaint was filed on 29.09.2017. Section 24(A) of the Consumer Protection Act posits as under:-

24.(A)Limitation period - (1) The District Forum, the State Commission or the National Commission shall not admit a complaint unless it is filed within two years from the date on which the cause of action has arisen.

(2) Notwithstanding anything contained in sub-section (1), a complaint may be entertained after the period specified in sub-section (1), if the complainant satisfies the District Forum, the State Commission or the National Commission, as the case may be, that he had sufficient cause for not filing the complaint within such period:

Provided that no such complaint shall be entertained unless the National Commission, the State Commission, the State Commission or the District Forum, as the case may be, records its reasons for condoning such delay.

The cause of action matter having arisen on 01.10.2011, the complaint should have been filed keeping in view the provisions of the Act referred to above, on or before 30.09.2013. This was however filed on 29.09.2017 much after the prescribed limitation period. No application has been filed praying for condonation of delay. Besides it is not the case of continuing cause of action.

The Hon'ble Supreme Court in the matter of M. Bala Krishnan Vs. M. Krishna Murthy VII (1998) SLT 334 is pleased to observe has observed as under:-

"Rules of limitation are not meant to destroy the rights of parties. They are meant to see that the parties do not resort to dilatory tactics, but seek their remedy promptly. The object of providing a legal remedy is to repair the damage caused by reason of legal injury. Law of limitation fixes a life span for such legal remedy for the redress of the legal injury so suffered. Time is precious and the wasted time would never revisit. During efflux of time newer causes would sprout up necessitating newer persons to seek legal remedy by approaching the courts. So a life span must be fixed for each remedy. Unending period of launching the remedy may leading to unending uncertainty and consequential anarchy. Law of limitation is thus founded on public policy. It is enshrined in the maxium interest "reipublicae up sit finis mum" (It is for the general welfare that a period be put to litigation). The idea is that every legal remedy must be kept alive for a legislatively fixed period of time.

Secondly delay of 199 days not condoned since sufficient cause for delay not shown. [DDA is Krishan Lal Nandrayog IV (2010) CPJ 7 (SC)].

Similarly delay of 209 days not condoned in the absence of any satisfactory explanation. [Nilesh Goyal vs. Symphony Infrastructure Pvt. Ltd. IV(2016) CPJ 678 (NC)].

Having regard to the fact that the complaint had not been filed within prescribed, we order dismissing of the complaint on the ground of limitation.

However, there is another aspect to look into the matter. The complainant as per the law settled by the Hon'ble Apex Court, having taken over the possession is no longer a consumer and thus not entitled to raise a consumer dispute. The Hon'ble NCDRC in the matter of Harpal Arya vs. Housing Board, Haryana - II (2016) CPJ 36 (NC) - has held:

"Once petitioner had taken over possession with open eyes and without any precondition, he ceases to be a consumer".

Similar view was taken by the Hon'ble NCDRC in the matter of Smita Roy vs. Excel Construction - IV (2012) CPJ 204.

The complaint is consequently not maintainable even on merit.

We order accordingly. Copy of the order be sent to the parties free of cost as statutorily required.

File be consigned to records.

(ANIL SRIVASTAVA)

(O . P . GUPTA)

MEMBER

MEMBER (JUDI